



Covered Material and Producer Definitions: **Maryland**



Contents

Introduction	4
Determining Producer Obligations in Maryland	5
Maryland Definitions	6
Exempt Materials	11
Exempt Producers	14

Version History

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Version 1.0	March 27, 2026	Initial release

Introduction

The information provided in this guidance document is designed to help businesses identify covered materials and the responsible producer for those materials in Maryland under the “Packaging and Paper Products—Producer Responsibility Act” (: The Packaging and Paper Products—Producer Responsibility Act as codified).¹

Circular Action Alliance (CAA) is required to register with the Maryland Department of Environment (MDE) by July 1, 2026, and provide the Department with information about obligated producers. Similarly, producers will be asked to register with CAA and to report supply data in simplified reporting categories by May 31, 2026. Detailed material reporting categories have not yet been finalized, and detailed producer reporting will not occur until after the Program Plan is approved. In the meantime, producers should consult with their legal counsel on whether they or their products are covered by the statutory definitions included in this resource.

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¹ Please note: In February 2026, Maryland Department of Environment (MDE) released a draft regulation and draft guidance. As final regulations have not been issued, this guidance does not incorporate the draft regulation and will be updated after issuance of relevant final regulations and/or guidance from MDE.



Determining Producer Obligations in Maryland

There are two primary questions businesses need to ask to determine if they are obligated under [MD Code, Environment, S9-2501-2512 Subtitle 24](#):

- Is the material associated with my products covered by Maryland's packaging EPR law?
- Is my business the responsible producer for those covered materials?

EPR laws for packaging and paper vary from state to state but are generally designed to apply to single-use packaging, paper, and some disposable products. As a first step in the process of identifying whether your company has obligations under Maryland's packaging and paper EPR law, companies should review with their legal counsel the definitions of each material type to determine whether the materials associated with the products placed in the market in Maryland are subject to the state's packaging EPR law. Second, companies should review the producer hierarchy associated with the covered materials to determine if their business is the obligated producer for those materials.

The Maryland statute has identified exemptions of specific materials and has also exempted specific producers from the obligations of the state EPR laws. These exemptions are also outlined in this guidance document.

For producer convenience, CAA has also included the relevant Maryland EPR statutory language in this resource. This provides producers a single source for relevant definitions and the associated producer hierarchies for different categories of covered materials.

Maryland Definitions

[MD Code, Environment, S9-2501:](#)

(g)(1) "Covered material" means packaging and paper products sold, offered for sale, imported, or distributed in the State.

(2) "Covered materials" does not include exempt materials.

Covered Material Type	Specific Scenario	Producer Hierarchy
Packaging Section 9-2501 Definitions (n)(1) "Packaging" means a material, a substance, or an object that is used to protect, contain, transport, serve, or facilitate the delivery of a product that is sold or supplied with the product to the consumer for personal, noncommercial	Packaged item supplied at a physical retail location	Section 9-2501 Definitions (p)(1) "Producer" means the following person, as applicable, that is responsible for compliance with a producer responsibility plan under this subtitle: (i) For items sold in or with packaging at a physical retail location in the State: 1. If the item is sold in or with packaging under the brand of the item manufacturer or is sold in packaging without brand identification, the producer is the item manufacturer; 2. If there is no person described in item 1 of this item, the producer is the person that is licensed to manufacture and sell or offer for sale to consumers in the State an item with packaging under the brand or trademark of another manufacturer or person;

Covered Material Type	Specific Scenario	Producer Hierarchy
use and that is sold, offered for sale, imported, or distributed in the State. (2) “Packaging” includes: (i) Primary, secondary, and tertiary packaging intended for the consumer market; (ii) Service packaging designed and intended to be filled at the point of sale, including: 1. Carry-out bags; 2. Bulk goods bags; and 3. Take-out and home delivery food service packaging; and		3. If there is no person described in items 1 and 2 of this item, the producer is the brand owner of the item; 4. If there is no person described in items 1 through 3 of this item within the United States, the producer is the person that imports the product into the United States for use in a commercial enterprise that sells, offers for sale, or distributes the item in the State; or 5. If there is no person described in items 1 through 4 of this item, the producer is the person that first distributes the item in or into the State;
	Packaged item supplied through e-commerce, remote sale or distribution	Section 9–2501 Definitions (p)(1) “Producer” means the following person, as applicable, that is responsible for compliance with a producer responsibility plan under this subtitle: (ii) For items sold or distributed in packaging in or into the State via e-commerce, remote sale, or online distribution: 1. For packaging used directly to protect or contain the item, the producer of the packaging is a producer under item (i) of this paragraph; and



Covered Material Type	Specific Scenario	Producer Hierarchy
(iii) Beverage containers. (c)(1) "Beverage container" means a prepackaged beverage container: (i) Made of any material, including glass, plastic, metal, or multimaterials; (ii) In any form, including a bottle, can, carton, or pouch; and (iii) The volume of which is not more than 5 liters. (2) "Beverage container" does not include a prepackaged beverage container that is covered under a beverage container deposit return program in the State.		2. For packaging used to ship the item to a consumer, the producer of the packaging is the person that packages the item to be shipped to the consumer; (iii) For packaging that is not described in items (i) and (ii) of this paragraph, the producer of the packaging is the person that first distributes the item in or into the State;



Covered Material Type	Specific Scenario	Producer Hierarchy
Paper Products Subt. 25. 9-2501 Definitions (o)(1) “Paper products” means products made primarily from wood pulp or other cellulosic fibers. (2) “Paper products” does not include: (i) Bound books; or (ii) Products that are not accepted by materials recycling facilities or composting facilities because of the unsafe or unsanitary nature of the products.	Paper Products	Section 9-2501 Definitions (p)(1) (iv) For paper products that are magazines, catalogs, telephone directories, or similar publications, the producer is the publisher; (v) For paper products not described in item (iv) of this paragraph: 1. If the paper product is sold under the manufacturer’s own brand, the producer is the person that manufactures the paper product; 2. If there is no person described in item 1 of this item, the producer is the person that is the owner or licensee of a brand or trademark under which the paper product is used in a commercial enterprise, sold, offered for sale, or distributed in the State, whether or not the trademark is registered in the State; 3. If there is no person described in items 1 and 2 of this item, the producer is the brand owner of the paper product; or 4. If there is no person described in items 1 through 3 of this item within the United States, the producer is the person that imports the paper product into the United States for use in a commercial enterprise that sells, offers for sale, or distributes the paper product in the State; and



Covered Material Type	Specific Scenario	Producer Hierarchy
		(vi) For a producer identified in items (i) through (iii) of this paragraph that is a business operated wholly or in part as a franchise, the producer of the packaging is the franchisor if the franchisor has franchisees that have a commercial presence in the State.

Exempt Materials

Section 9–2501(I) Definitions

Product Category	Product Category Description
Packaging for Drug, Medical Devices & Nutritional Supplements	(1) Packaging for infant formula, as defined in 21 U.S.C. § 321(z); (2) Packaging for medical food, as defined in 21 U.S.C. § 360ee(b)(3); (3) Packaging for a fortified oral nutritional supplement, or food which is formulated to be consumed or administered enterally for individuals who are unable to consume nutrition orally, used by individuals who require supplemental or sole source nutrition to meet nutritional or special dietary needs directly related to the following conditions as defined by the International Classification of Diseases, Tenth Revision: (i) Cancer; (ii) Chronic kidney disease; (iii) Diabetes; (iv) Malnutrition; or (v) Failure to thrive; (4) Packaging for a product regulated as a drug or medical device by the U.S. Food and Drug Administration, including associated components and consumable medical equipment; (5) Packaging for medical equipment or a product used in medical settings that is regulated by the U.S. Food and Drug Administration, including associated components and consumable medical equipment; (6) Drugs, biological products, parasiticides, medical devices, or in vitro diagnostics that are used to treat, or that are administered to, animals and are regulated by:



Product Category	Product Category Description
	(i) The U.S. Food and Drug Administration under the federal Food, Drug, and Cosmetic Act; or (ii) The U.S. Department of Agriculture under the federal Virus–Serum–Toxin Act;
Beverage Containers	(c)(2) “Beverage container” does not include a prepackaged beverage container that is covered under a beverage container deposit return program in the State.
Hazardous Products	(7) Packaging for products regulated by the U.S. Environmental Protection Agency under the federal Insecticide, Fungicide, and Rodenticide Act; (8) Packaging used to contain liquefied petroleum gas and designed to be refilled; (11) Packaging used to contain hazardous or flammable products regulated under the 2012 federal Occupational Safety and Health Administration Hazard Communication Standard that prevent the packaging from being waste reduced or made reusable, recyclable, or compostable, as determined by the Department;
Certain Paper Products	(9) Newsprint subject to § 9-1707 of this title (10) A paper product used for a magazine's print publication that has a circulation of less than 95,000 and that primarily includes content derived from primary sources related to news and current events; (o) (2) “Paper products” does not include: (i) Bound books; or (ii) Products that are not accepted by materials recycling facilities or composting facilities because of the unsafe or unsanitary nature of the products.

Product Category	Product Category Description
Products Related to Specific Industry Sectors	(12) Packaging for products subject to the Paint Stewardship Program under Subtitle 17, Part V of this title;
Industrial/Commercial/Tertiary Packaging	(13) Material that a producer distributes to another producer that is: (i) Subsequently used to contain a product, and the product is distributed to a commercial business or entity; and (ii) Not introduced to a person other than the commercial or business entity that first received the product;
Durable Packaging	(14) Packaging used for the long-term protection or storage of a product that has a lifespan of not less than 5 years, as determined by the Department.

Exempt Producers

Section 9-2501(p)(2) Definitions

"Producer" does not include:

Maryland	
Not for Profit, Government	(i) A state, federal or state agency, a political subdivision, or other governmental unit; (ii) A registered 501(c)(3) charitable organization or 501(c)(4) social welfare organization;
Small Producers	(iii) A de minimis producer Section 9-2501(j) further clarifies the definition of "de minimis producer": (j) "De minimis producer means a person that in their most recent fiscal year: (1) Introduced less than 1 ton of covered material into the State; or (2) Earned global gross revenues of less than \$2,000,000.
Industry specific exemptions	(iv) A mill that uses any virgin wood fiber in the products it produces; (v) A paper mill that produces container board derived from 100% postconsumer recycled content and nonpostconsumer recycled content; (vi) An entity that owns or operates a restaurant, food cart, or similar establishment that: 1. Is headquartered in the State;

Maryland

2. Primarily sells to members of the public food that is generally intended to be consumed immediately and without the need for further preparation, either on or off the premises; and
3. Is not a producer of food serviceware;

(vii) An entity that owns or operates a single retail sales establishment that:

1. Has no online sales; and
2. Is not supplied or operated as part of a franchise or a chain;

(viii) An entity that:

1. Is licensed under Title 2 of the Alcoholic Beverages and Cannabis Article; and
2. Generated less than \$10,000,000 in gross revenue during the immediately preceding calendar year;

